

24NWCV02028 24NWCV02028

County: los-angeles

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Case Number: 24NWCV02028 Hearing Date: July 20, 2026 Dept: C

FLUCKER vs

PIH HEALTH, INC., et al.

CASE NO.: 24NWCV02028

HEARING: 7/20/26 @ 9:30 AM

#14

TENTATIVE

RULING

I.

Plaintiff DAMEON

FLUCKER's Motion to Compel Further Responses from
Defendant UNIVERSAL PROTECTION SERVICE, LP to Form Interrogatory, Set One,
No. 16.1, is DENIED.

II.

Plaintiff DAMEON

FLUCKER's Motion to Compel Further Responses from Defendant
UNIVERSAL PROTECTION SERVICE, LP to Requests for Admission, Set One, Nos. 20,
23, 24, 29, 30, 31, 34, 42, 43, 67, and 68, is GRANTED in part and DENIED in
part as set forth below.

No sanctions.

Moving Party to give

NOTICE.

Background

This

is a personal injury action. In the operative First Amended Complaint, Plaintiff alleges that on November 13, 2023, Plaintiff was walking to his vehicle located within the parking structure of the Premises. As Plaintiff was walking through said parking structure, his right foot suddenly slipped into an exposed drain that was missing a cover (Exposed Drain), causing Plaintiff to lose his balance, twist his ankle, and fall onto his right wrist (Subject Incident). (First Amended Complaint (FAC), ¶¶ 14-15.) As a result of Plaintiff's fall, he sustained serious injuries to his person, particularly his right ankle and right wrist. (FAC ¶ 16.) Defendant Universal Protection Service, LP (Defendant) is a security company that was hired by Defendant PIH Health, Inc., the owner of the Premises, to patrol the area where Plaintiff fell.

Based

thereon Plaintiff asserts the following causes of action:

- (1) Negligence;
- (2) Premises Liability; and
- (3) Dangerous Condition of Public Property.

Meet

and Confer

The

Court finds Plaintiff adequately attempted to meet and confer.

The

Court notes that Plaintiff's December 3, 2025 meet and confer correspondence failed to identify Form Interrogatory No. 16.1, the only request at issue in Plaintiff's Motion, as a request that Plaintiff sought a further response to. (Allton Decl., Exh. B.)

However,

Plaintiff's January 30, 2026 email correspondence sought further responses to

Form Interrogatories Nos. 12.1, 15.1, and 16.1-16.8. Thus, Plaintiff included a request for further response to Form Interrogatory No. 16.1. (Allton Decl., Exh. D.)

Defendant

agreed to provide further responses to the 16 series collectively, along with Nos. 12.1 and 15.1. (Marcoly Decl., ¶ 3.) Following several agreed to extension requests, Defendant provided its further responses on March 25, 2026. (Allton Decl., ¶ 11, Exh. I.)

Defendant

failed to provide a further response to Form Interrogatory No. 16.1. Defendant contends that it was due to Plaintiff's original failure to include it in his meet and confer letter of December 3, 2025, and by defense counsel relying primarily on that letter in preparing the further responses. (Marcoly Decl., ¶ 4.)

I.

Form Interrogatory No. 16.1

Section

2030.300 allows a party to file a motion compelling further answers to interrogatories if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civil Proc., § 2030.300, subd. (b).)

Plaintiff propounded the following in Form Interrogatory No. 16.1:

Do you contend that any PERSON, other than you or plaintiff, contributed to the occurrence of the INCIDENT or the injuries or damages claimed by plaintiff? If so, for each PERSON: (a) state the name, ADDRESS, and telephone number of the PERSON; (b) state all facts upon which you base your contention; (c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of the facts; and (d) identify all DOCUMENTS and other tangible things that support your contention and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing.

Defendant objected to this interrogatory. Defendant responded: "Unknown at this time. Responding Party expressly denies any

liability or involvement in the incident, as Responding Party was not present at the scene at the time of the incident and had no duty relating to maintenance or inspection of the subject storm drain. Responding Party does not have any personal knowledge of the facts or circumstances surrounding the incident. Discovery and investigation are continuing. Responding Party reserves the right to amend or supplement this response if it obtains additional responsive information.” (Allton Decl., ¶¶ 3, 5, Exh. A, C.)

Section 2030.220 provides that “(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits; (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible; (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.

Plaintiff argues that Defendant’s response is not code-compliant because Defendant has not made a reasonable and good faith effort to determine who, besides the owner, is responsible for the incident. Defendant asserts that its response is as complete and straightforward as the information readily available to it permits. Defendant denies liability and denies any personal knowledge of the incident. The Court determines that Defendant has sufficiently responded to Form Interrogatory No. 16.1. Because Defendant does not own the premises, it can plausibly deny knowledge of the person or entity who may be responsible for maintaining the exposed drain. In any event, whether another person or entity besides the owner is responsible for maintaining the drain is a question Plaintiff is just as capable of answering as Defendant. Section 2030.220 requires a party to make a reasonable and good faith effort to obtain the requested information except where the information is equally available to the propounding party.

Accordingly,
the motion to compel further response to Form Interrogatory No. 16.1 is DENIED.

II.
Requests for Admission
(RFA)

Section

2031.310 allows a party to file a motion compelling further answers to request for admissions if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. The motion shall be accompanied with a meet and confer declaration. (Code Civil Proc., § 2031.310, subd. (b).)

A. RFA

Nos. 20, 23, 24, 29, 30, 31, 34, 42, 43 and 68

These

requests for admission each describe the drain Plaintiff allegedly slipped on as a “dangerous condition.” For example:

RFA No. 24: “Admit YOUR employees took no action to remedy the DANGEROUS CONDITION of the DRAIN in the five (5) years immediately preceding the SUBJECT INCIDENT.”

RFA No. 29: “Admit YOU failed to inspect the DANGEROUS CONDITION in the eight (8) hours immediately preceding the SUBJECT INCIDENT.”

RFA No. 42: “Admit YOU had constructive notice of the DRAIN’s DANGEROUS CONDITION prior to the occurrence of the SUBJECT INCIDENT.”

Plaintiff argues Defendant is required to respond to each request while denying the drain was a “dangerous condition.” For example, as to RFA No. 24, Plaintiff argues that Defendant could have responded:

“[insert objection]

Admit Responding Party did not remedy the subject drain within 5 years of the incident. Responding Party denies the subject drain was a dangerous condition at the time of the incident.”

Defendant argues that responding to any of these requests would require Defendant to adopt the unproven assumption that the subject drain was dangerous, which Defendant has denied. (Allton’s Decl., Exh. A.)

The

Court finds that Defendant has sufficiently responded to the RFAs at issue here. The RFAs call for Defendant to adopt a legal conclusion – that is, whether the drain was in a dangerous condition, which is a disputed issue in this case. Moreover, as stated previously, Defendant is under no duty to inquire about efforts to inspect or remedy the condition of the drain because Defendant does not own the premises and the information sought in the RFAs is equally available to Plaintiff.

Accordingly,

the motion to compel further responses to RFA Nos. 20, 23, 24, 29, 30, 31, 34, 42, 43 and 68 is DENIED.

B.

RFA No. 67

RFA

No. 67: Admit that prior to the date of the SUBJECT INCIDENT, YOU placed a cone over the uncovered DRAIN to warn pedestrians that of an uncovered DRAIN.

For

this request, Defendant responded as follows:

“Objection.

This request calls for speculation, lacks foundation, assumes facts not in evidence, and is vague, ambiguous, and overbroad. Subject to and without waiving said objections, Responding Party responds as follows: Deny based on lack of sufficient information and knowledge. A reasonable inquiry concerning the matter in this request has been made, and the information known or readily obtainable is insufficient to enable Responding Party to admit the matter. Discovery is ongoing.”

As

to RFA No. 67, Defendant's response is incomplete. The main purpose of Requests for Admission is to set at rest triable issues so that they will not have to be tried; they are aimed at expediting trial. (Orange Co. Water Dist v. The Arnold Eng. Co. (2018) 31 Cal.App.5th 96, 115.) Defendant should know whether it or any of its employees placed a cone over the uncovered drain on the date of the incident. If Defendant does not know, it must make a reasonable and good faith inquiry to find

out.

Accordingly,
the motion to compel further response to RFA No. 67
is GRANTED. Defendant shall provide a
further verified response, without objection, within 10 days.

Monetary Sanctions

The court shall impose a
monetary sanction against the party who unsuccessfully makes or opposes a
motion to compel further responses to interrogatories or requests for admission
unless the party subject to the sanction acted with substantial justification
or the sanction would otherwise be unjust.

(Code Civil Proc., § 2031.310(h).)

Plaintiff requests \$1,375.00 in monetary
sanctions for the motion to compel further response to Form Interrogatory No.
16.1 and \$3,300.00 in monetary sanctions for the motion to compel further
response to RFA Nos. 20, 23, 24, 29, 30, 31, 34, 42, 43, 67, and 68. Given the
denial of all but one of Plaintiff's discovery requests, the request for
sanctions is also DENIED.